ZIMBABWE REVENUE AUTHORITY

versus

LEAPIUM HOLDINGS t/a LEAPMED LOGISTICS

AND

THE STATE/NATIONAL PROSECUTING AUTHORITY

AND

OFFICER IN CHARGE ZIMBABWE REPUBLIC POLICE
BINGA POLICE STATION

AND

V. MPOFU N.O

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 31 October 2025 & 27 March 2026

Opposed Application- Application for Review ITO Rule 62

T. L Marange, for the applicant
I. R Mafirakureva, for the 1st respondent
No appearances for the 2nd- 4th respondents.

MPOKISENG DUBE J: The applicant is the Zimbabwe Revenue Authority, an administrative authority established in terms of the Revenue Authority Act [*Chapter 23:11*], which is tasked, inter alia, with the collection of customs and excise duty. The 1st respondent is a company with limited liability registered in accordance with the laws of Zimbabwe. The 2nd respondent is the National Prosecuting Authority, a statutory body tasked with the duty of carrying out public prosecutions in the name of the State. The 3rd respondent is the Officer in Charge, ZRP Binga, cited in his official capacity. The 4th respondent is V. Mpofu, cited in his official capacity as the Provincial Magistrate who ordered the release of a truck belonging to the 1st respondent after it was seized by the applicant.

Brief Facts

The brief facts of the matter are that on the 1st of January 2025, members of the Zimbabwe Republic Police stationed at Binga Police Station informed the applicant's officers that they had intercepted smugglers approximately 25km from Binga Centre towards Cross Dete, and a truck loaded with assorted goods had been detained. Upon the arrival of the applicant's officers at the scene, they noticed that a truck was laden with an assortment of goods, and they asked for the customs documents from Mr. Antony Chabata, Ntokozo Sibanda, and Mpofu Tinos. Upon failure to produce such documents, the trio was arrested, and a MAN TRUCK Reg No. AFJ 7658 with Registration number AFJ 7658 and Chassis number WMA18SZZ28W11099 was detained under Notice of Seizure No. 036524 L issued to Antony Chabata.

The trio was ultimately charged and arraigned for trial before the 4th respondent, facing charges of c/s 182 of the Customs and Excise Act [*Chapter 23:02*], which criminalises the act of smuggling. At the conclusion of the process, it appears only Antony Chabata was convicted and sentenced. He was the owner of the goods that were being conveyed. A notice of seizure in respect of the truck was issued in his name and given 90 days to make representations to the Regional Manager for the release of the truck. Naturally, Chabata, not being the owner of the truck, did not make any representations. Instead, the 1st respondent instituted an application before the Binga Magistrates Courts, wherein it was the applicant, the National Prosecuting Authority was cited as the 1st respondent, and the Officer in Charge ZRP Binga was cited as the 2nd respondent. The application was unopposed, hence granted by the current 4th respondent, ordering the release of the said truck.

The applicant herein seeks review of such decision by the 4th respondent.

Upon filing its Notice of Opposition, the 1st respondent took out some preliminary points. In its answering affidavit, the applicant also took out some counter-preliminary points. Those are the subject of this judgment.

Submissions per the 1st respondent

Mr. Mafirakureva, for the 1st respondent, raised the following points in *limine*:

1. Lack of *locus standi*.

He argued that the applicant was not part of the proceedings in the court *a quo* for that reason, he is non-suited to seek to review the said proceedings.

2. Inadmissible hearsay evidence.

It was argued that the person who deposed to a founding affidavit on behalf of the applicant was not present when the facts of this matter unfolded, his testimony was inadmissible hearsay evidence, more so in the absence of supporting affidavits on the actual officer or officers who attended to the matter.

3. That the board resolution filed by the applicant authorising the deponent to litigate on its behalf is defective as it was issued in the year 2003, thus too general and blanket.

Submissions per the applicant

Mr. Marange, for the applicant, raised first a point of law that was not raised in his Heads of Argument, viz.

1. That the 1st respondent is barred for failure to file its Heads of arguments not more than ten days after the applicant filed its Heads. He relied on Rule 59 (21) and argued that in the absence of an application for condonation and the granting of such condonation to uplift the bar, the 1st respondent should not be accorded audience. He argued that 1st respondent's Notice of Opposition should be expunged and nothing should turn around it.
2. He then opposed the 1st respondent's preliminary points and argued that the *locus standi* was established by virtue of the body holding onto the truck belonging to the 1st respondent. He argued that case law authorities show that the applicant ought to show a "direct and substantial interest." He contended that the seizure of the truck emanates from a violation of the Customs and Excise Act, *supra*, which falls directly under the mandate of the Revenue Authority, being the applicant herein.
3. On inadmissible hearsay evidence, he argued that all officers of the applicant act on the delegated authority of the Commissioner General. What they do in the execution of their duties remains admissible even if they were to die or leave the department. He relied on section 193(5) of the Customs and Excise Act *supra*.
4. In respect of the alleged defective board resolution, he argued that the relied upon cases of *Beach Consultancy (Pvt) Ltd v Makonya and Anor* HH 696-21 and that of *Cuthbert*

Elkana Dube vs Premier Service Medical Aid Society SC 73-19 are distinguishable as they relate to private body corporates as opposed to public bodies established by an Act of Parliament. He referred the court to the case of *Musa Kika vs Minister of Justice, Legal and Parliamentary Affairs and Ors* HH 264-21

The 1st respondent replicated and basically stuck to its guns. In response to the point of law that was raised for the first time during arguments, Mr. Mafirakureva cited Rule 59(21) verbatim. He argued that the bar thereunder should arise as a corollary to the applicant having "delivered" its Heads onto the 1st respondent. Contended that the word "deliver" mandates the applicant to serve its Heads of argument on the 1st respondent. Without such service, he argues, there cannot be a bar.

He accepted that for a party to proceedings to have *locus standi* in proceedings, such a party should have a direct and substantial interest. While accepting the position to be trite, he argued that the facts of this matter do not admit to such. He reasoned that a party cannot challenge a decision made in a matter in which they were not a party to in the court *a quo*.

He argued further that when it comes to authority vesting the deponent to represent the applicant, a distinction should not be made from private corporates as doing so would be to apply the law with discrimination in favour of public enterprises.

In relation to hearsay evidence, he argued that the High Court Rules, 2021 and the Civil Evidence Act [*Chapter 8:01*] applies to alike and for that reason the applicant cannot be treated differently.

I allowed the applicant to replicate on the point of law relating to the operation of a bar against the 1st respondent.

Mr. Marange argued that that S.I 81of 2024, Amended Rule 15 of the High Court Rules, to the effect that service of process shall be effected on the IECMS platform. He admits that the initial process was served physically, but argued that as for Heads, as soon as the Registrar stamps the document, then service would have been effected. He insisted that the 1st respondent is barred.

Consideration of the Preliminary Points

The preliminary points raised are intricately intertwined with the merits of this matter. I shall therefore proceed with extreme circumspection.

Is the applicant lacking *locus standi?*

In its answering affidavit, the deponent thereto, one Bekezela Majokojoko, had this to say;

> "*The applicant was not a party to the court application in the criminal court and as such could not oppose the application. Further to that, there is no procedure for the rescission of a judgment in criminal proceedings. It is common cause that the order which ordered the release of the motor vehicle which had been seized in terms of the Customs and Excise Act was granted by the Magistrates Court sitting as a criminal court".*

By this assertion, the applicant admits that it was not part of the proceedings in the court *a quo*. It distances itself from the acts of the State being represented by the National Prosecuting Authority.

In presenting oral argument *Mr Marange* had a different take. He argued that the decision that is sought to be reviewed emanates from criminal proceedings and that the applicant was the complainant and, accordingly, represented by the State. If this argument is correct, then it means the applicant was involved from the get-go. Interestingly, however, in the present matter, the applicant is suing the National Prosecuting Authority as the 2nd respondent. This can only mean there are two distinct bodies.

Be that as it may, this application is said to be brought before this court in terms of section 27(1) (a) and (c) of the High Court Act [*Chapter 7:06*] as read with Rule 62 of the High Court Rules, 2021.

Section 27(1) (a) reads as follows;

> "27 Grounds for review
>
> (1) Subject to this Act and any other law, the grounds on which any proceedings or decision may be brought on review before the High Court shall be –
> (a) Absence of jurisdiction on the part of the court, tribunal, or authority concerned
> (b) ……
> ….
> (c) Gross irregularity in the proceedings or the decision."

The major gripe of the applicant is that the court *a quo* sitting as a criminal court did not have the jurisdiction to order the release of the truck belonging to the 1st respondent. I must

point out that the starting point ought to be section 26 of the High Court Act, *supra* which vests the power to review proceedings or decisions. It reads as follows;

> "26 Power to review proceedings and decisions
>
> Subject to this Act and any other law, the High Court shall have power, jurisdiction and authority to review all proceedings and decisions of all inferior courts of justice, tribunals and administrative authorities within Zimbabwe."

I must emphasise that the remedy of review must not be confused with that of an appeal. The main distinction between the two being that in an appeal what is in question is the substantive correctness of the original decision whereas on review the High Court is not delving into the substantive correctness of the decision, but is only determining whether there were any reviewable procedural irregularities or any action which is reviewable because it was ultra vires the powers of the tribunal or inferior court. See *Tselentis v Salisbury City Council* 1965(4) SA 61(SRA)

By way of comparative analysis, Section 3 of the Administrative Justice Act [*Chapter 10:28*] empowers the High Court to review decisions of all tribunals, statutory and quasi-judicial bodies. Section 4 thereof reads as follows:

> 4. Relief against administrative authorities
>
> (1) Subject to this Act and any other law, <u>any person who is aggrieved by the failure of an administrative authority to comply with section three may apply to the High Court for relief</u>. *(My own underlining for emphasis)*

It is unfathomable that when the decision sought to be reviewed is of a court of law, *albeit* inferior, the *locus standi* should now be limited. The major distinction, as in the present case, is that *locus standi* for review is on fairly wide grounds, whereas *locus standi* in appeals is only confined to the parties to the original case.

In *casu*, with respect to Mr. Mafirakureva, it is a misstatement of the law to hold that the applicant herein lacks *locus standi* as he was not part of the proceedings in the court *a quo*. In fact, the applicant is the current custodian of the truck in question. I shall not at this point delve into the correctness or otherwise of the process followed, leading to the said truck being in the hands of the applicant. I am thus satisfied that the applicant has the requisite *locus standi*. The first preliminary point fails.

Inadmissible Hearsay evidence by the deponent to the applicant's founding affidavit

In the matter of *Johnstone* v *Wildlife Utilisation Services Ltd* 1966 RLR596 (G) @ 569-598, it was held thus:

> "It is accepted, in our practice, that the rules of admissibility of hearsay evidence applicable to interlocutory proceedings are not the same as those that apply to trial actions. Such evidence, given in affidavit form in such applications, is not necessarily excluded because it is hearsay, provided the source of the information is disclosed. As I understood or practice, it is this: first the court must examine the evidence given in this form and ascertain the prejudice which might result to the opposite party, if the evidence is later shown to be incorrect, would be irremediable, second, the court must examine to see whether there is some justification, such as urgency, for the evidence being placed before it in hearsay, and not direct form." (see also *Glenwood Heavy Equipment (Pvt) Ltd v Hwange Colliery and Others* HH-664-16 and *Church of The Province of Central Africa v Elson Jakazi and others* HH-70-10)

I must state that in the present matter, the evidence given is hearsay. Bekezela Majokojoko does not claim to have been present when the events he/ or she attests to occurred. He states as follows in the opening paragraph of his founding affidavit:

> "*I, the undersigned Bekezela Majokojoko, do hereby make oath and state that:-*
>
> *1. I am employed by the Applicant herein as its Regional Manager, Region 2, based at Mhlahlandela Complex. I am in charge of the portfolio under which this matter falls.*
>
> *Further to that, I am also privy to the facts of this matter, and it in these capacities that I am authorised to depose to this affidavit and do depose to this affidavit for and on behalf of the Applicant by virtue of a board resolution attached hereto as Annexure A."*

From the foregoing, one can only deduce that the deponent operates from Bulawayo, Mhlahlandlela Building, yet the facts he attests to took place in Binga. He, however, goes on to state:

> "2. *The facts stated herein are to the best of my knowledge true and correct except where the context indicates otherwise."*

Clearly, if he was never in Binga, he can only attest to the correctness of these facts by being briefed by someone on the ground. *In casu* he does not disclose who. He proceeds and states under oath;

> "*4. Where I do not have personal knowledge of any such facts, I have, through diligent enquiry, satisfied myself as to the veracity of such facts."*

He does not indicate if he perused the court record, nor whether he studied some official entries in the records falling under his portfolio. On the facts of the matter, he seems to generalise matters. He does not state that he was present when the truck was intercepted by the police. For that reason, he cannot dispute the averment that it was found about 25 kilometers from Binga town towards Dete- Bulawayo. He cannot attest as to who exactly had physical control over the truck. He does not seem to dispute that there were two other individuals found at the truck, namely Ntokozo Sibanda and Tinos Mpofu. He does not state the exact charge that led to the conviction of Antony Chabata serve to say the police advised them that conveying smuggled goods is an offence and arrested them.

Quite tellingly, Majokojoko claims that Notice of Seizure No.036524L was issued to Ntokozo Sibanda, a representative and driver of the 1st respondent. That turns out to be untrue as the notice No. 036524L attached to his founding affidavit, albeit unmarked, is issued out to Antony Chabata. It turns out, therefore, that after all, he did not make any "*diligent enquiry to satisfy himself of the veracity of such facts"* as he claims.

In contrast, Ntokozo Sibanda deposed to an affidavit during the application to release the vehicle before the 4th respondent, to the effect that he is an employee of the 1st Respondent employed as a mechanic. He was tasked by the 1st Respondent to go and attend to a breakdown of the said truck. Upon arrival, he found the driver, Brian Matonda, having abandoned the truck and only left Chabata, who had hired the truck. When he was trying to diagnose the problem, the police arrived and arrested him, together with Chabata and Mpofu. Clearly, Majokojoko cannot controvert the circumstances of the arrest.

He claims that they were arrested for "conveyance of smuggled goods," which falls under section 184 of the Customs and Excise Act [*Chapter 23:02*], yet in fact the 4th respondent states categorically that Chabata was charged and arraigned under section 182 of the said Act.

Having stated above, I am of the respectful view that Bekezela Majokojoko's affidavit contains hearsay evidence. He does not state the source of his knowledge. As demonstrated above, admission of such inaccurate evidence causes prejudice to the 1st respondent. This case was not brought on an urgent basis; therefore, there is no justification why the applicant did not bring forth first hand evidence from an individual who could positively swear to the facts he deposes. Having said that, I find the evidence of Majokojoko to be inadmissible and uphold the preliminary point.

Validity of the applicant's Resolution.

Having upheld the 2nd preliminary point, may I mention *obiter dicta* that on matters of such magnitude, it is desirable for litigants, be they statutory bodies or not, to file resolutions which are recent and relevant to the subject matter in issue. *In casu* the applicant relies on a Resolution passed in July 2023, two years before these proceedings were instituted. While I accept that for statutory bodies it is not convenient to convene a board and pass a resolution every week, at least once yearly would be reasonable. The matter, however, does not fall or rise on this point anymore.

Is any bar operational in terms of Rule 59(21) of the High Court Rules 2021?

Rule 59(21) expressly obliges an applicant not only to file but also to "deliver" such heads on every Respondent within the prescribed time limits and to file proof of such service. Compliance, therefore, entails both filing and service.

Rule 59 at every stage makes it clear that a failure to comply with these requirements results in an automatic bar.

See *Lilian Alice Makiwa – Jakazi v Muzvndiwa and Ors* HH188-25 at page 7, which quoted with approval *The Joint Executors of the Estate Late Macdonald Chapfika & Anor V Pennilwill (Pvt) Ltd & Ors* HH545-24.

The court, while commenting on the provisions of sub-rule (9), made the following remarks.

> "Rule 59(9) of the Rules states that a Respondent who fails to file a notice of opposition and opposing affidavit in terms of subrule (8) shall be barred. As noted, r 59(8) deals with the service of the opposing papers and the filing of the proof of service. The filing of a certificate of service is not optional but mandatory, just as is the case with the service of a notice of opposition and an opposing affidavit. The stipulation of the period within which a respondent is required to file proof of service of the notice of opposition was not in my view just done ex abundanti, but for a reason. The reason was to promote the expeditious disposition of cases in line with the policy of the law that there should be finality to litigation. ……
>
> To penalize errant litigants who do not wish to prosecute their matters to finality, the drafters of the rules considered it proper to impose deadlines for the service of the notice of opposition and opposing affidavits and the filing of the proof of service. The old High Court Rules, 1971, did not impose such a deadline. It is common cause that a failure to comply with specific timeframes imposed by rules of court results in the defaulting party being barred. In terms of Rule 39(4) (b) of the Rules, a party that has been barred has no right of audience before the court, save for the purposes of applying

> for the removal of such bar. A party that has been barred must act with dispatch, as a clear demonstration that they are not taking the rules of court and court business for granted"

In the present matter, I do not agree with Mr. Marange that the advent of IECMS has replaced the need to effect service of the Notice of Opposition, or in this case, service of Heads. In the *Jakazi* matter supra, it was held further thus;

> "I must also point out that Mr. Matiyashe`s argument that the advent of the IECMS has made the rules on service obsolete was misplaced. The rules, amended by SI81/2024, retained the requirement for service of a court application and the notice of opposition. Thus, "deliver or serve" is defined in rule 3 to mean "to deliver either physically or electronically". The IECMS did not do away with the requirements for service and filing of certificates of service. In any case, it is clear that service does not necessarily have to be physical. It can also be done electronically. The parties are still required to comply with the court rules."

Even though he raised the point of law in response to the 1st respondent's preliminary objections, I am of the view that he was barred first. That way, it made his application a non-event in any case.

Disposition

In the foregoing, having upheld two of the preliminary points raised by the 1st respondent, the application for review must fail.

The following order is therefore made.

The application for review be and is hereby struck off with costs.

Zimbabwe Revenue Authority, Legal Division, applicant's legal practitioners
Moyo and Nyoni, 1st respondent's legal practitioners